

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No.

**KATHY D. CRUZ and
RAMON L. CRUZ, Jr.**

Plaintiffs,

v.

**CHRISTOPHER R. COLE, M.D., and
Colorado Springs Cardiologists, P.C.,**

Defendants.

COMPLAINT FOR DAMAGES & JURY DEMAND

COME NOW THE PLAINTIFFS, Kathy D. Cruz and Ramon L. Cruz, Jr. (hereinafter “plaintiffs”), by and through their counsel, George E. McLaughlin, of the law firm of McDermott, Hansen & McLaughlin, LLP, and file their Complaint and Jury Demand against defendants Christopher R. Cole, M.D., and Colorado Springs Cardiologists, P.C., and allege and state the following:

PARTIES

1. Plaintiffs, Kathy D. Cruz and Ramon L. Cruz, Jr., presently are residents of the State of Indiana, residing at the address of 1754 Hogan Drive, Kokomo, Indiana 46902.

2. At all times necessary to this action, the defendant Christopher R. Cole, M.D., was and at this time is, a resident of Colorado Springs, Colorado.

3. At all times necessary to this action, the defendant Christopher R. Cole, M.D., maintained a professional office for the practice of the medical specialties of Cardiology and Clinical Cardiac Electrophysiology at the address of Suite 4007, 2222 North Nevada Avenue, Colorado Springs, Colorado 80907.

4. At all times necessary to this action, the defendant Colorado Springs Cardiologists, P.C., was a Colorado Professional Corporation, and maintained a professional office for the practice of the medical specialties of Cardiology and Clinical Cardiac Electrophysiology by its shareholders, members, or employees at the address of Suite 4007, 2222 North Nevada Avenue, Colorado Springs, Colorado 80907.

JURISDICTION & VENUE

5. This Court has subject matter jurisdiction over the action pursuant to 28 U.S.C. §1332(a), as the parties are citizens of different States, and the amount in controversy exceeds the sum or value of \$75,000, exclusive of interest and costs.

6. All of the relevant and material events and actions involving the parties to this action, and that are the subject of this Complaint, took place within the State of Colorado.

7. The Court has personal jurisdiction over the defendants pursuant to C.R.S. §13-1-124(1), as plaintiffs' claims arise out of defendants' commission of tortious acts or transaction of business and within the State of Colorado.

8. Venue is proper in this Court pursuant to 28 U.S.C. §1391(a) and (c).

GENERAL ALLEGATIONS

FIRST CLAIM FOR RELIEF (Negligence of Christopher R. Cole, M.D.)

9. Plaintiffs incorporate by reference the preceding paragraphs 1 through 8 of this Complaint.

10. By a Tolling Agreement entered into as of September 10, 2007, and a Tolling Agreement Extension entered into as of March 6, 2008, the parties have stipulated, agreed, and contracted that the statute of limitations applicable to any claims that Kathy D. Cruz and Ramon L. Cruz, Jr. may have against Christopher R. Cole, M.D., and any Professional Corporation, Limited Liability Company, or other business entity under which he practices medicine, arising out of injuries allegedly sustained by the plaintiffs during the surgery performed on Kathy D. Cruz by Christopher R. Cole, M.D., on September 13, 2005, and thereafter, shall be tolled to and including the date of May 16, 2008.

11. At all times necessary to this action, the defendant Christopher R. Cole, M.D., represented himself to the plaintiffs to be experienced in, and engaged in the medical practice and specialties of Cardiology and Clinical Cardiac Electrophysiology.

12. On or about September 13, 2005, defendant Christopher R. Cole, M.D., performed surgery on Kathy D. Cruz for the purpose of implanting into her body a Class III Medical Device known as a Guidant Contek Renewal 4 AVT (Model H170), commonly known as an Implantable Cardioverter Defibrillator or "ICD."

13. As a part of the surgery performed by defendant Christopher R. Cole, M.D., on plaintiff Kathy D. Cruz, it was necessary that Dr. Cole have and exercise the requisite training, knowledge, care, and skill to correctly identify what are known as the SVC and RV coils of the integrated bipolar lead.

14. As a part of the surgery performed by defendant Christopher R. Cole, M.D., on plaintiff Kathy D. Cruz, it was necessary that Dr. Cole have and exercise the requisite training, knowledge, care, and skill to attach SVC and RV coils of the integrated bipolar lead to the correct ports in the header of the ICD.

15. In the course of the surgery performed on plaintiff Kathy D. Cruz by defendant Christopher R. Cole, M.D., the SVC and RV coils of the integrated bipolar lead were attached to the wrong ports in the header of the ICD.

16. During the surgery performed on Kathy D. Cruz, the failure of defendant Christopher R. Cole, M.D., to correctly identify the SVC and RV coils of the integrated bipolar lead was a violation of the generally accepted standard of care, and was negligent.

17. During the surgery performed on Kathy D. Cruz, the failure of defendant Christopher R. Cole, M.D., to attach the SVC and RV coils of the integrated bipolar lead to the correct ports in the header of the ICD was a violation of the generally accepted standard of care, and was negligent.

18. As a direct and proximate result of the actions and conduct of defendant Christopher R. Cole, M.D., during the surgery he performed on Kathy D. Cruz, the ICD of Kathy D. Cruz was not able to provide some of the therapy and benefits it was designed and intended to provide.

19. As a direct and proximate result of the actions and conduct of defendant Christopher R. Cole, M.D., during the surgery he performed on Kathy D. Cruz, the ICD of Kathy D. Cruz did not provide some of the therapy and benefits it was designed and intended to provide.

20. As a direct and proximate result of the ICD of Kathy D. Cruz not providing some of the therapy and benefits it was designed and intended to provide, Kathy D. Cruz suffered injury, pain, suffering, and disability on numerous occasions, including, but not limited to episodes of dizziness, lost consciousness, and falls, some of these events being witnessed by her husband, plaintiff Ramon Cruz, and her minor children.

21. As a direct and proximate result of the failure of defendant Christopher R. Cole, M.D., to correctly identify the SVC and RV coils of the integrated bipolar lead and attach them to the correct ports in the header of the ICD, the ICD of Kathy D. Cruz did not provide some of the therapy and benefits it was designed and intended to provide, causing her injury, pain, suffering, and disability on numerous occasions, including, but not limited to episodes of dizziness, lost consciousness, and falls, some of these events being witnessed by her husband, plaintiff Ramon Cruz, and her minor children.

22. As a direct and proximate result of the ICD of Kathy D. Cruz not providing some of the therapy and benefits it was designed and intended to provide, Kathy D. Cruz suffered anxiety, mental anguish, the belief that her death was imminent, extreme emotional distress as would normally be experienced by a person suffering such events as described herein, and loss of enjoyment of life.

23. As a direct and proximate result of the failure of defendant Christopher R. Cole, M.D., to correctly identify the SVC and RV coils of the integrated bipolar lead and attach them to the correct ports in the header of the ICD, the ICD of Kathy D. Cruz did not provide some of the therapy and benefits it was designed and intended to provide, causing her anxiety, mental anguish, the belief that her death was imminent, extreme emotional distress as would normally be experienced by a person suffering such events as described herein, and loss of enjoyment of life.

24. As a direct and proximate result of the ICD of Kathy D. Cruz not providing some the therapy and benefits it was designed and intended to provide, Kathy D. Cruz sought emergency medical treatment, hospitalizations, and other scheduled and unscheduled medical

examinations, treatment, and diagnostic tests, with defendant Christopher R. Cole, M.D., and others, resulting in medical bills, costs, and expenses associated with that care.

25. As a direct and proximate result of the failure of defendant Christopher R. Cole, M.D., to correctly identify the SVC and RV coils of the integrated bipolar lead and attach them to the correct ports in the header of the ICD, the ICD of Kathy D. Cruz did not provide some of the therapy and benefits it was designed and intended to provide, resulting in Kathy D. Cruz seeking emergency medical treatment, hospitalizations, and other scheduled and unscheduled medical examinations, treatment, and diagnostic tests, with defendant Christopher R. Cole, M.D., and others, resulting in medical bills, costs, and expenses associated with that care.

26. In spite of the fact that Kathy D. Cruz sought and received emergency medical treatment, hospitalizations, and other scheduled and unscheduled medical examinations, treatment, and diagnostic tests, with defendant Christopher R. Cole, M.D., Dr. Cole did not discover that the SVC and RV coils of the integrated bipolar lead were attached to the wrong ports in the header of the ICD of Kathy D. Cruz.

27. The failure of defendant Christopher R. Cole, M.D., to discover that the SVC and RV coils of the integrated bipolar lead were attached to the wrong ports in the header of the ICD of Kathy D. Cruz was a violation of the standard of care, and was negligent.

28. In December of 2005, the fact that the SVC and RV coils of the integrated bipolar lead had been attached to the wrong ports in the header of the ICD was discovered by another physician, not professionally associated with the defendants.

29. On or about December 12, 2005, a physician not professionally associated with the defendants performed surgery on plaintiff Kathy D. Cruz and correctly attached the SVC and RV coils of the integrated bipolar lead to the ports in the header of the ICD.

30. After the physician not professionally associated with the defendants performed the surgery on plaintiff Kathy D. Cruz and correctly attached the SVC and RV coils of the integrated bipolar lead to the ports in the header of the ICD, there was a period of follow up care, and monitoring necessary to ensure that the device was properly programmed and properly functioning, resulting in medical bills, costs, and expenses associated with that care.

SECOND CLAIM FOR RELIEF
(Liability of Colorado Springs Cardiologists, PC)

31. Plaintiffs incorporate by reference the preceding paragraphs of this Complaint.

32. At all times relevant hereto, defendant Christopher R. Cole, M.D., engaged in the practice of medicine as a shareholder, member, or employee of defendant Colorado Springs Cardiologists, P.C.

33. All of the care and treatment provided to plaintiff Kathy D. Cruz, by Christopher R. Cole, M.D., as set forth above, was provided to her through defendant Colorado Springs Cardiologists, P.C.

34. Defendant Colorado Springs Cardiologists, P.C., is legally liable to the plaintiffs for any and all of the injuries and damages suffered by plaintiffs, as set forth herein.

THIRD CLAIM FOR RELIEF
(Loss of Consortium – Ramon Cruz)

35. Plaintiffs incorporate by reference the preceding paragraphs of the Complaint.

36. At all times relevant hereto Ramon L. Cruz, Jr. was, and to this day is, the husband of Kathy D. Cruz.

37. As a result of the actions, inactions, conduct, and negligence of the defendants, as set forth above, plaintiff Ramon L. Cruz, Jr. suffered the loss of and impairment of his consortium, society, kindly offices, and relationship with his wife, plaintiff Kathy D. Cruz.

**DAMAGES
(All Claims for Relief)**

38. As a direct and proximate result of the violations of the standard of care, negligence, conduct, actions, and inactions of the defendants, as set forth above, plaintiff Kathy D. Cruz incurred medical bills, costs, and expenses for her hospitalizations, surgeries, medical care, examinations, diagnostic studies, tests, therapy, and rehabilitation in excess of the jurisdictional amount of this Court.

39. As a direct and proximate result of the violations of the standard of care, negligence, conduct, actions, and inactions of the defendants, as set forth above, plaintiff Kathy D. Cruz suffered and endured physical and emotional injury, pain, suffering, disability, mental anguish, the belief that her death was imminent, extreme emotional distress as would normally be experienced by a person suffering such events as described herein, and loss of enjoyment of life.

40. As a direct and proximate result of the violations of the standard of care, negligence, conduct, actions, and inactions of the defendants, as set forth above, plaintiff Kathy D. Cruz suffered loss of income, earnings and/or earning capacity.

41. As a result of the actions, inactions, conduct, and negligence of the defendants, as set forth above, plaintiff Ramon L. Cruz, Jr. suffered the loss of and impairment of his consortium, society, kindly offices, and relationship with his wife, plaintiff Kathy D. Cruz.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs Kathy D. Cruz and Ramon L. Cruz, Jr. pray for relief and an award of damages in excess of the jurisdictional amount of this United States District Court, for all of the following:

A. All costs and expenses incurred proximately related to the initial hospitalization and surgery for the incorrectly performed implantation of the ICD, and all follow-up care and medical monitoring associated with that initial surgery;

B. All costs and expenses incurred proximately related to hospitalizations, surgery, medical care, examinations, diagnostic testing, therapy, rehabilitation, and monitoring of Kathy D. Cruz during the period of time that the ICD with its misconnected leads remained implanted in the body of Kathy D. Cruz;

C. All costs and expenses incurred proximately related to hospitalizations, surgery, medical care, examinations, diagnostic testing, therapy, rehabilitation, and monitoring of Kathy D. Cruz for the discovery and surgical correction of the misconnected leads, and related adjustment and monitoring of the ICD, and all necessary follow-up care and medical monitoring for a reasonable period of time thereafter;

D. Loss of income, earnings, or earnings capacity of Kathy D. Cruz during the period of time that the ICD with its misconnected leads were implanted in the body of Kathy D. Cruz, and for a reasonable period of time thereafter;

E. All other economic damages of Kathy D. Cruz proximately related to this event, including, but not limited to, medical treatment, incidental expenses, hospital charges, therapy, and rehabilitation;

F. Non-economic damages of Kathy D. Cruz, including but not limited to, pain, suffering, mental anguish, emotional distress, disability, and loss of enjoyment of life;

G. Damages of Ramon L. Cruz, Jr. for the loss of the consortium of his wife, Kathy D. Cruz, for the period of time that the ICD with its misconnected leads were implanted in the body of Kathy D. Cruz, and for a reasonable period of time there after;

- H. Pre-judgment and post-judgment interest as provided for by law;
- I. Attorneys fees, costs, and expenses of this action as provided for by law;
- J. All other damages as may be permitted under Colorado law after completion of initial discovery;
- K. For such other and further relief as the Court deems just and proper.

JURY TRIAL DEMAND

Plaintiffs Kathy D. Cruz and Ramon L. Cruz, Jr. hereby demand a trial by jury on all claims for relief, and all issues of fact and damages, as well as any other issue so triable.

Respectfully submitted this 13th day of May, 2008.

s/George E. McLaughlin

George E. McLaughlin

Colorado Registration No. 16364

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